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DEFENDANT LOS ANGELES UNIFIED SCHOOL DISTRICT'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

Demurrer filed on June 8, 2026.

MOVING PARTY: Defendant Los Angeles Unified School District

RESPONDING PARTY: Plaintiff A.B., a minor, by and through Guardian Ad Litem Karla Yadira Barrera Paz

NOTICE: OK

RELIEF REQUESTED: An order sustaining Defendant Los Angeles Unified School District's demurrer to the first, second, third, and fourth causes of action in the First Amended Complaint without leave to amend.

RULING: The general demurrer is sustained with 20 days' leave to amend as to the first cause of action and overruled as to the second, third, and fourth causes of action. The special demurrer for uncertainty to the first cause of action is overruled as moot. The request for judicial notice is denied as unnecessary.

BACKGROUND

On January 16, 2026, A.B., a minor, by and through Guardian Ad Litem Karla Yadira Barrera Paz (Plaintiff), filed this action against Los Angeles Unified School District (Defendant LAUSD), Franklin Fischer (Fischer), and Does 1 through 50.

On April 30, 2026, Plaintiff filed the operative First Amended Complaint (FAC). The FAC asserts causes of action for violation of Government Code section 11135, battery, assault, intentional infliction of emotional distress, negligence, and negligent hiring, training, supervision, and retention.

The FAC alleges that Plaintiff was a 12-year-old sixth-grade student at Oliver Wendell Holmes Middle School and has Down syndrome and Autism Spectrum Disorder. (FAC ¶¶ 19-20.) Defendant LAUSD employed Fischer as Plaintiff's physical education teacher. (FAC ¶¶ 11, 19.) Plaintiff alleges that, during a physical education class on March 14, 2025, Fischer beat, hit, and punched Plaintiff, threw him to the ground, and dragged him outside. (FAC ¶¶ 22-24.) Plaintiff alleges resulting physical and emotional injuries. (FAC ¶¶ 29-30.)

On June 8, 2026, Defendant LAUSD filed the present demurrer and request for judicial notice. On July 29, 2026, Plaintiff filed an opposition. On August 6, 2026, Defendant LAUSD filed a reply.

REQUEST FOR JUDICIAL NOTICE

Defendant LAUSD's request for judicial notice of the First Amended Complaint is denied as unnecessary. The Court may consider the operative pleading as part of its own record.

LEGAL STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

DISCUSSION

First Cause of Action for Violation of Government Code Section 11135

Government Code section 11135, subdivision (a), provides that no person, on the basis of mental or physical disability, shall "be unlawfully denied full and equal access to the benefits of, or be unlawfully subjected to discrimination under" a program or activity operated or funded by the state. With respect to disability discrimination, covered programs must meet the protections and prohibitions of title II of the Americans with Disabilities Act. (Gov. Code, § 11135, subd. (b).)

Defendant LAUSD argues that Collins v. Thurmond (2019) 41 Cal.App.5th 879 categorically excludes discrimination claims arising in public education from section 11135. Collins stated that the Legislature intended to remove "educational equity claim[s]" from the scope of section 11135. (Id. at p. 905.) The claim before Collins, however, was asserted against the California Department of Education and the State Superintendent and sought enforcement of their duties under sections 11136 and 11137. The court found a "catch-22" because those state-level defendants could only refer the alleged violations to the Department of Fair Employment and Housing, which lacked statutory authority to investigate educational-equity complaints. (Id. at pp. 902-905.) The claims against the local defendants had been resolved and were not before the Court of Appeal. (Id. at p. 890.) Brennon B. v. Superior Court (2022) 13 Cal.5th 662 cites section 11135 among the statutes that prohibit discrimination in public schools and make remedies available to persons whose rights have been violated. (Id. at p. 670.) The Court therefore declines to sustain the demurrer on the ground that Collins categorically bars a direct section 11135 claim against LAUSD.

The FAC nevertheless fails to state a claim as pleaded. Because the claim seeks to impose statutory liability on a public entity, “every fact material to the existence of its statutory liability must be pleaded with particularity.” (*Lopez v. Southern California Rapid Transit District* (1985) 40 Cal.3d 780, 795.)

Here, the FAC alleges that Plaintiff has Down syndrome and Autism Spectrum Disorder and that Fischer attacked him during physical education class. It then alleges that Plaintiff is “currently unaware of Mr. Fischer’s reasons for his unprovoked attack,” but “believes” the violence occurred because Plaintiff was disabled. (FAC ¶¶ 20, 22-25.) That allegation identifies Plaintiff’s theory but alleges no disability-related statement, differential treatment, prior animus, or other circumstance supporting a causal connection between Plaintiff’s disability and the attack. Paragraph 36 merely alleges that Defendants denied Plaintiff equal access and discriminated against him “on the basis of his disabilities.” LAUSD’s alleged failure to investigate, discipline, or remove Fischer does not supply the missing connection because the FAC does not allege that LAUSD acted because of Plaintiff’s disability. (FAC ¶¶ 28, 36.)

The FAC also fails to allege a basis for the relief authorized by Government Code section 11139. In construing the broader remedies available under Education Code section 220, *Donovan v. Poway Unified School District* (2008) 167 Cal.App.4th 567 explained that the Legislature “expressly limited enforcement” under Government Code section 11139 to equitable relief and contrasted that limitation with Education Code section 262.3, subdivision (b), which permits money damages. (*Id.* at pp. 594-595.)

Here, the first cause of action seeks damages arising from the completed attack. (FAC ¶ 37.) The prayer requests general damages, special damages, statutory damages or penalties, attorney fees, and other appropriate relief. It does not request declaratory or injunctive relief. The FAC also does not allege that Plaintiff remains subject to Fischer’s authority or otherwise faces an ongoing or threatened discriminatory denial of access. The general prayer for other appropriate relief does not supply the missing allegations supporting an equitable remedy.

The general demurrer to the first cause of action is sustained. Because Plaintiff may be able to allege facts supporting equitable relief or amend the pleading to state a cognizable claim for damages under an appropriate statutory theory, the demurrer is sustained with 20 days’ leave to amend. Because the general demurrer is sustained, the special demurrer for uncertainty is overruled as moot.

Second and Third Causes of Action for Battery and Assault

The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant’s conduct; and (4) a reasonable person in plaintiff’s position would have been offended by the touching.” (*So v. Shin* (2013) 212 Cal.App.4th 652, 669.) Assault requires an intentional act causing the plaintiff reasonably to anticipate imminent harmful or offensive contact, lack of consent, resulting harm, and causation. (*Id.* at pp. 668-669.)

The FAC alleges that Defendant Fischer intentionally hit, grabbed, and dragged Plaintiff without consent, causing harmful and offensive contact, pain, and other injuries. (FAC ¶¶ 39-44.) It also alleges that Fischer raised his hands or fist while hitting, grabbing, and dragging Plaintiff, causing Plaintiff reasonably to fear imminent harmful contact that Defendant Fischer had the present ability to inflict. (FAC ¶¶ 46-50.) These allegations sufficiently plead battery and assault against Fischer.

The disputed issue is Defendant LAUSD’s vicarious liability. Government Code section 815.2, subdivision (a), provides: “A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee.” An employer’s liability extends to torts of an employee committed within the scope of his employment. This includes willful and malicious torts as well as negligence. (*John R. v. Oakland Unified School Dist.* (1989) 48 Cal.3d 438, 447.) Where the facts of the case make it arguable whether the employee has acted within the scope of his employment, then the scope of employment issue is one properly decided by the trier of fact. (*Alma W. v. Oakland Unified School Dist.* (1981) 123 Cal.App.3d 133, 138.) Still, “[t]hat the employment brought tortfeasor and victim together in time and place is not enough.” (*Lisa M. v. Henry Mayo Newhall Memorial Hospital* (1995) 12 Cal.4th 291, 298.) “[T]he acts leading up to the tort

must bear some relation to the employee's duties." (Alma W., supra, 123 Cal.App.3d at p. 141.)

Here, the FAC alleges that Defendant Fischer attacked Plaintiff while Plaintiff was in a physical education class Defendant Fischer was teaching. (FAC ¶¶ 22-24.) It further alleges that "Fischer's use of physical force arose directly out of his supervisory role over students in a PE class setting," that the force occurred while Defendant Fischer was "exercising his duties of controlling and directing students in his charge," and that "[t]he confrontation leading to the assault arose in the context of Fischer's supervision of students in class, a core function of his employment." (FAC ¶¶ 43, 49.) Thus, the pleaded nexus is not merely that Defendant Fischer's employment placed him near Plaintiff. The FAC ties the alleged physical force to the physical education class Defendant Fischer was teaching and to his contemporaneous duties of controlling and directing students. These allegations permit an inference that the attack was an unauthorized escalation of a classroom-supervision interaction rather than a separate personal pursuit.

Paragraph 25 does not compel a contrary conclusion. Although Plaintiff describes the attack as "unprovoked" and believes it occurred because he was disabled, Plaintiff also alleges that he is "currently unaware of Mr. Fischer's reasons." (FAC ¶ 25.) The FAC therefore does not establish personal malice unconnected with Fischer's employment as the only possible inference.

John R. and Alma W. do not require sustaining the demurrer. Both involved sexual misconduct that the courts held outside the scope of employment on the facts before them. John R. held that "the connection between the authority conferred on teachers to carry out their instructional duties and the abuse of that authority to indulge in personal, sexual misconduct" was too attenuated. (John R., supra, 48 Cal.3d at p. 452.) Alma W. held that the custodian's rape was "an independent, self-serving pursuit wholly unrelated to his custodial duties," while distinguishing work-related disputes that may culminate in physical assault. (Alma W., supra, 123 Cal.App.3d at pp. 141-143.) The FAC here alleges nonsexual force during the physical education class Defendant Fischer was teaching and ties the confrontation itself to Fischer's contemporaneous duties of supervising, controlling, and directing students. Those allegations make the scope-of-employment issue "arguable" and therefore not resolvable against Plaintiff on demurrer. (Alma W., supra, 123 Cal.App.3d at p. 138.)

The demurrer to the second and third causes of action is overruled.

Fourth Cause of Action for Intentional Infliction of Emotional Distress

The elements of the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (Christensen v. Superior Court (1991) 54 Cal.3d 868, 903.) Conduct is outrageous when it is "so extreme as to exceed all bounds of that usually tolerated in a civilized community." (Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc. (2005) 129 Cal.App.4th 1228, 1259.) Conduct may be outrageous where a defendant abuses a relationship or position that gives the defendant power to damage the plaintiff's interests or knows the plaintiff is particularly susceptible to mental distress. (Hailey v. California Physicians' Service (2007) 158 Cal.App.4th 452, 474.) Severe emotional distress must be of "such substantial quantity or enduring quality" that a person in civilized society should not be expected to endure it. (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.)

Here, the FAC alleges that Plaintiff was a 12-year-old student with Down syndrome and Autism Spectrum Disorder and that Defendant Fischer, his physical education teacher, became enraged during class, beat and punched Plaintiff, threw him to the ground, and dragged him at least ten feet outside the school building. (FAC ¶¶ 19-24.) The alleged physical attack by a teacher on a disabled minor under his supervision may reasonably be regarded as extreme and outrageous. These allegations also sufficiently plead that Defendant Fischer acted with at least reckless disregard of the probability of causing severe emotional distress. The FAC further alleges that the attack caused Plaintiff to compulsively pull out his hair, resulting in a permanent bald spot, and caused continuing severe emotional and psychological distress, humiliation, fear, anxiety, shock, mental anguish, and ongoing treatment. (FAC ¶¶ 29-30, 54-55.) These allegations sufficiently plead severe emotional distress and causation.

The FAC alleges that Fischer's attack itself constituted extreme and outrageous conduct. It also alleges that LAUSD is liable under Government Code section 815.2 for torts committed by its employees within the scope of employment. (FAC ¶¶ 6, 13, 51-52.) As discussed above, the allegations make the scope-of-employment issue "arguable" and therefore not resolvable against Plaintiff on demurrer. The FAC therefore states an IIED claim against LAUSD under a vicarious-liability theory. The District's arguments concerning whether its separate retention and post-incident conduct independently supports IIED do not defeat the cause of action as a whole. (See *Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38-39.) The Court therefore does not reach whether LAUSD's own institutional conduct independently states an IIED claim.

The demurrer to the fourth cause of action is overruled.

CONCLUSION

The general demurrer to the first cause of action is sustained with 20 days' leave to amend. The special demurrer for uncertainty to that cause of action is overruled as moot.

The general demurrer to the second, third, and fourth causes of action is overruled.

Defendant LAUSD's request for judicial notice is denied as unnecessary.